

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PARIIS TILLERY ,

Plaintiff,

-against-

POLICE OFFICER PETER LAZARE, Shield No. 26342,
and SERGEANT DANIEL PERRINO,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates KINGS
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 9, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER PETER LAZARE, Shield No. 26342, 73rd Precinct, 1470 E New York Ave, Brooklyn, NY 11212
SERGEANT DANIEL PERRINO, 73rd Precinct, 1470 E New York Ave, Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

PARIIS TILLERY,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER PETER LAZARE, Shield No. 26342,
and SERGEANT DANIEL PERRINO,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff, PARIIS TILLERY, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On August 9, 2015 at approximately 4:30 p.m., plaintiff Pariis Tillery, while lawfully present in the vicinity of 290 Stone Avenue, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was subsequently denied the right to due process and a fair trial until a criminal charges brought against plaintiff were dismissed and sealed on or about March 15, 2016. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, and denied plaintiff the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff PARIIS TILLERY is a resident of Staten Island, New York.

3. POLICE OFFICER PETER LAZARE, Shield No. 26342, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, POLICE OFFICER PETER LAZARE, Shield No. 26342, was assigned to the 73rd Precinct.

5. POLICE OFFICER PETER LAZARE, Shield No. 26342, is being sued in his individual and official capacities.

6. SERGEANT DANIEL PERRINO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, SERGEANT DANIEL PERRINO, was assigned to 73rd precinct.

8. SERGEANT DANIEL PERRINO, is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On August 9, 2015, at approximately 4:30 p.m., plaintiff was lawfully walking in the vicinity of 290 Stone Street, Brooklyn, New York when he was subjected to an unlawful stop, frisk, search, detention, false imprisonment, and false imprisonment.

15. At no time prior to being unlawfully stopped by the defendant officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

16. By way of background, plaintiff was walking back to his apartment building when he observed the defendant police officers arresting two woman and he decided to lawfully film the arrest with his phone.

17. At no point in time did plaintiff interfere with the defendant police officers in any way.

18. Nevertheless, the defendant police officers suddenly and without legal justification grabbed plaintiff threw him down to the ground.

19. At no time relevant herein did plaintiff resist arrest in any way.

20. Notably, NYPD Patrol Guide Section 208-03 explicitly states that police officers do not have probable cause to arrest an individual for merely filming an arrest.

21. Nevertheless, the defendant police officers unlawfully arrested plaintiff without legal justification or probable cause for merely filming the arrest of the two woman.

22. Plaintiff was then placed in the back seat of the police vehicle and transported to the 73rd precinct.

23. At the 73rd precinct, plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

24. On or about August 10, 2015, plaintiff was transported from the 73rd precinct to Brooklyn Central Booking.

25. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by defendant police officer Peter Lazare in the criminal court complaint, defendants maliciously initiated a prosecution against plaintiff without probable cause, and as a result plaintiff was falsely charged with Obstruction Governmental Administration and Disorderly Conduct.

26. On or about August 10, 2015, after approximately 24 hours in custody, plaintiff was arraigned in Brooklyn Criminal Court and was released on his own recognizance.

27. Thereafter, plaintiff was forced to appear in Court on numerous occasions before all charges against plaintiff were dismissed and sealed on March 15, 2016.

28. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to

prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, and denial of fair trial and due process rights to plaintiff.

29. The unlawful stop, question, frisk, search, false arrest, false imprisonment, denial of due process, denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.

31. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, and subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

34. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

35. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

37. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

40. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

41. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

47. Defendants lacked probable cause to search plaintiff.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 51 with the same force and effect as if fully set forth herein.

53. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

54. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

55. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

56. In withholding/creating false evidence against plaintiff Pariis Tillery and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

57. As a result of the foregoing, plaintiff Pariis Tillery, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Failure to Intervene

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

62. Defendants failed to intervene to prevent the unlawful conduct described herein.

63. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

66. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Pariis Tillery demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 9, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
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(212) 577-2690

TO: POLICE OFFICER PETER LAZARE, Shield No. 26342, 73rd Precinct, 1470 E New York Ave, Brooklyn, NY 11212
SERGEANT DANIEL PERRINO, 73rd Precinct, 1470 E New York Ave, Brooklyn, NY 11212

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 9, 2018

/s/
STUART E. JACOBS, ESQ.